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Newsom signs gun laws that add new taxes and limit where owners can carry firearms

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SACRAMENTO, Calif. - California Gov. Gavin Newsom signed several gun-control measures on Tuesday, including a bill that tightens the state's concealed-carry rules and another that imposes a new tax on firearm and ammunition sales.

During a signing ceremony in Sacramento alongside lawmakers and gun-control advocates, Newsom said California would push back on legal efforts to dismantle its firearms laws and maintain its position as a national gun-control leader, but called for greater federal action.

"We have a responsibility to do more and continue to lead in that conversation," Newsom said. "I think we need to be screaming louder about this."

"I'm celebratory, because I'm proud that we were able to sign these bills," Newsom added, "but it's going to require a national construct, a national frame in order to ultimately address this."

The laws build on Newsom's resolution that the Legislature passed earlier this month calling for a constitutional convention of the states to consider a new amendment on gun control.

California already has some of the strongest firearm restrictions in the country, each year earning top marks from gun-control advocacy organizations such as the Giffords Law Center. Nonetheless, guns have contributed to an uptick in California's violent crime rates over the last several years, according to an analysis by the nonpartisan Public Policy Institute of California.

Also hanging over the celebration were the two mass shootings at the start of the year in Monterey Park and Half Moon Bay that killed 18 people and increased pressure for additional legislation to regulate firearms.

Of the more than 20 bills Newsom signed, two stand out as especially significant.

Senate Bill 2 is California's response to the U.S. Supreme Court ruling in New York State Rifle & Pistol Assn. vs. Bruen last year, when the 6-3 conservative majority justices struck down restrictive concealed-carry laws as unconstitutional.

The decision forced Newsom, Atty. Gen. Rob Bonta and Democratic lawmakers, including state Sen. Anthony Portantino (D-Burbank), to write legislation that would scrap California's more subjective law that allowed local authorities to decide who can get a concealed-carry permit and replace it with a policy that largely guarantees a license once application criteria is met.

Despite the changes, the new law still seriously limits who can obtain a license to carry a concealed firearm and is already facing a legal challenge from gun-rights advocates.

It details more than two dozen "sensitive places" that are off-limits to firearms, such as child care centers and schools, public transit, banks, museums, zoos, medical facilities, parks, playgrounds and bars. The bill also includes a controversial provision that renders commercial businesses automatically gun-free zones unless the owner explicitly says otherwise.

Licensing authorities, namely sheriff's departments, will now be required to conduct in-person interviews with applicants, request character references and review publicly available statements such as social media posts to

determine whether someone is a public safety risk and therefore a "disqualified" person. The law also increases training and safety storage rules and requires concealed-carry applicants to be 21, the same age required in California to buy a handgun.

The second major proposal Newsom signed is Assembly Bill 28, landmark legislation by Assemblymember Jesse Gabriel (D-Encino) that will impose an 11% tax on dealers and manufacturers for sales of guns and ammunition. The new law is expected to raise more than $160 million annually for violence prevention, school safety programs and victim support services.

Opponents of AB 28 expanded beyond the 2nd Amendment advocacy organizations that typically fight California's firearms laws to include wildlife, conservation and hunting groups concerned that lawful gun owners would bear the tax burden. They argued hunting and shooting sports would become unaffordable to low-income communities and that the new law would discourage outdoor recreation.

"AB 28 would unjustifiably place the entire burden of funding efforts to address illegal gun violence on the backs of law-abiding citizens who legally purchase and lawfully use firearms and ammunition," the California Rifle & Pistol Assn. wrote in opposition to the bill.

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